

SOFTWARE AS A SERVICE SUBSCRIPTION AGREEMENT

This Software as a Service Subscription Agreement (the "Agreement") is made as of February 1, 2026 (the "Effective Date") between Cloudhaven Technologies, Inc., a California corporation ("Vendor"), and Northgate Financial Group, Inc., a New York corporation ("Customer").

Vendor provides a cloud-hosted portfolio reporting platform (the "Service"), and Customer wishes to subscribe to the Service subject to the terms below.

1. Subscription and Access

1.1 Vendor grants Customer a non-exclusive, non-transferable right during the Subscription Term for up to two hundred fifty (250) named users to access and use the Service for Customer's internal business purposes.

1.2 Customer shall not (a) sublicense or resell the Service, (b) reverse engineer the Service except as permitted by law, (c) use the Service to develop a competing product, or (d) exceed the purchased user count without an upgrade order.

2. Service Levels and Support

2.1 Vendor will make the Service available at least 99.9% of each calendar month, excluding scheduled maintenance announced at least forty-eight (48) hours in advance (the "Uptime Commitment").

2.2 If monthly availability falls below the Uptime Commitment, Customer is entitled to a service credit of 5% of the monthly subscription fee for each full 0.1% of availability shortfall, capped at 30% of the monthly fee. Service credits are Customer's sole and exclusive remedy for availability failures.

2.3 Vendor provides support via email and portal during business hours (8:00–18:00 Eastern, weekdays), with a four (4) hour initial response target for severity-1 incidents.

3. Fees and Payment

3.1 Customer shall pay the annual subscription fee stated in the order form, invoiced annually in advance. Invoices are due within forty-five (45) days of the invoice date (net 45).

3.2 On each renewal, Vendor may increase subscription fees by no more than five percent (5%) over the prior term's fees, with at least sixty (60) days' prior written notice.

3.3 Fees are non-refundable except as expressly provided in this Agreement. Amounts more than thirty (30) days overdue accrue interest at 1% per month, and Vendor may suspend access for accounts more than sixty (60) days overdue after written notice.

4. Term and Termination

4.1 The initial Subscription Term is one (1) year from the Effective Date and automatically renews for successive one (1) year terms unless either party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term.

4.2 Either party may terminate this Agreement for material breach if the breach is not cured within thirty (30) days after written notice. Customer may also terminate if a severity-1 outage exceeds seventy-two (72) consecutive hours, in which case Vendor shall refund prepaid fees for the unused portion of the Subscription Term.

4.3 Upon termination, Customer's access ceases, and Vendor shall make Customer Data available for export in CSV format for thirty (30) days, after which Vendor shall delete Customer Data within ninety (90) days, except as retained in routine backups.

5. Customer Data, Security and Data Protection

5.1 Customer retains all right, title, and interest in data submitted to the Service ("Customer Data"). Vendor may use Customer Data only to provide and improve the Service and as instructed by Customer.

5.2 Vendor shall maintain an information security program aligned with SOC 2 Type II, including encryption of Customer Data in transit (TLS 1.2 or higher) and at rest (AES-256), role-based access controls, and annual penetration testing.

5.3 Vendor shall notify Customer without undue delay, and in any case within seventy-two (72) hours, after becoming aware of a security breach affecting Customer Data, and shall provide reasonable cooperation in Customer's incident response.

6. Confidentiality

6.1 Each party shall protect the other's Confidential Information with at least reasonable care, use it only as needed to perform under this Agreement, and disclose it only to personnel and advisors under equivalent confidentiality obligations.

6.2 Confidentiality obligations survive for five (5) years following termination or expiration of this Agreement; obligations for trade secrets survive as long as trade secret protection applies.

7. Intellectual Property

The Service, including all software, interfaces, and documentation, is the exclusive property of Vendor and its licensors. No rights are granted except as expressly set forth in this Agreement. Customer grants Vendor a limited license to host and process Customer Data solely to provide the Service. Vendor may use aggregated, de-identified usage statistics that do not identify Customer or any individual.

8. Warranties and Disclaimers

8.1 Vendor warrants that the Service will perform materially in accordance with its published documentation and that it will not materially degrade the functionality of the Service during a Subscription Term.

8.2 EXCEPT AS STATED ABOVE, THE SERVICE IS PROVIDED "AS IS" AND VENDOR DISCLAIMS ALL OTHER WARRANTIES, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. VENDOR DOES NOT WARRANT THAT THE SERVICE WILL BE UNINTERRUPTED OR ERROR-FREE.

9. Indemnification

9.1 Vendor shall defend Customer against third-party claims that the Service, as provided by Vendor, infringes any U.S. patent, copyright, or trademark, and shall pay damages finally awarded or agreed in settlement. If the Service is enjoined, Vendor shall, at its option, procure the right for Customer to continue using it, modify it to be non-infringing, or terminate the subscription and refund prepaid unused fees.

9.2 Customer shall defend Vendor against third-party claims arising from Customer Data or Customer's use of the Service in violation of law or this Agreement, and shall pay damages finally awarded against Vendor.

10. Limitation of Liability

10.1 EXCEPT FOR LIABILITY ARISING FROM SECTION 9 (INDEMNIFICATION) OR A PARTY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, EACH PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE BY CUSTOMER FOR THE SERVICE IN THE SIX (6) MONTHS IMMEDIATELY PRECEDING THE FIRST EVENT GIVING RISE TO LIABILITY.

10.2 IN NO EVENT IS EITHER PARTY LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES, OR FOR LOSS OF PROFITS, REVENUE, OR DATA, HOWEVER

CAUSED AND UNDER ANY THEORY OF LIABILITY.

11. Publicity

Neither party may use the other party's name or logo in marketing materials without prior written consent, except that Vendor may identify Customer as a customer in factual lists of customers after Customer's written approval of the specific usage.

12. Governing Law

This Agreement is governed by the laws of the State of California, without regard to conflict of laws principles. Any dispute shall be resolved exclusively in the state or federal courts located in San Francisco County, California, and each party consents to personal jurisdiction there.

13. General Provisions

This Agreement, including order forms, is the entire agreement between the parties and supersedes all prior agreements regarding its subject matter. Amendments must be in writing and signed. Neither party may assign this Agreement without consent, except to an affiliate or successor in a merger or acquisition. Failure to enforce a provision is not a waiver. If any provision is unenforceable, it will be modified to the minimum extent necessary.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.